

No. 163. An act relating to capital construction and State bonding budget adjustment.

(H.952)

It is hereby enacted by the General Assembly of the State of Vermont:

* * * Legislative Intent * * *

Sec. 1. 2025 Acts and Resolves No. 33, Sec. 1 is amended to read:

Sec. 1. LEGISLATIVE INTENT

(a) It is the intent of the General Assembly that of the ~~\$111,965,288.44~~
\$123,564,624.67 authorized in Secs. 2–16 of this act, not more than
~~\$61,969,761.44~~ \$61,449,761.44 shall be appropriated in the first year of the
biennium, and the remainder shall be appropriated in the second year.

* * *

* * * Bond-Funded Project Authorizations * * *

Sec. 2. 2025 Acts and Resolves No. 33, Sec. 2 is amended to read:

Sec. 2. STATE BUILDINGS

* * *

(b) The following sums are appropriated in FY 2026:

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(2) Statewide, three-acre parcel stormwater compliance: ~~\$1,500,000.00~~
\$500,000.00

* * *

(c) The following sums are appropriated in FY 2027:

(1) Statewide, major maintenance: ~~\$8,500,000.00~~ \$8,683,413.18

* * *

(4) ~~Statewide, three-acre parcel stormwater compliance: \$1,100,000.00~~

[Repealed.]

* * *

(7) Montpelier, State House replacement of ~~historic~~ interior finishes:

\$50,000.00

(8) Montpelier, 120 State Street HVAC – steam lines interior

renovation: ~~\$2,000,000.00~~ \$1,000,000.00

* * *

(12) Montpelier, State House entryway upgrades, design documents,
including comprehensive parking plan and delivery truck access, and second-
floor egress design:

\$1,300,000.00

(d) On or before January 15, 2027, the Sergeant at Arms and the
Commissioner of Buildings and General Services shall report to the House
Committee on Corrections and Institutions and the Senate Committee on
Institutions on the status of the designs for the State House entryway and
second-floor egress under subdivision (c)(12) of this section and on estimates
for construction costs.

Appropriation – FY 2026	\$13,726,680.44 <u>\$12,726,680.44</u>
Appropriation – FY 2027	\$15,925,000.00 <u>\$15,308,413.18</u>
Total Appropriation – Section 2	\$28,951,680.44 <u>\$28,035,093.62</u>

Sec. 3. 2025 Acts and Resolves No. 33, Sec. 3 is amended to read:

Sec. 3. HUMAN SERVICES

(a) The following sums are appropriated in FY 2026 to the Department of Buildings and General Services for the Agency of Human Services for the following projects:

* * *

(4) St. Johnsbury, Northeast Correctional Complex (NECC) door control system replacements: ~~\$1,000,000.00~~ \$1,480,000.00

* * *

(b) The following sums are appropriated in FY 2027 to the Department of Buildings and General Services for the Agency of Human Services for the following projects:

(1) Statewide, planning, design, and construction for HVAC system upgrades at correctional facilities: ~~\$1,000,000.00~~ \$9,426,254.21

* * *

(4) St. Johnsbury, Northeast Correctional Complex (NECC) door control system replacements: ~~\$2,600,000.00~~ \$2,920,000.00

(5) ~~Newport, Northern State Correctional Facility (NSCF) sprinkler system upgrades:~~ ~~\$500,000.00~~ [Repealed.]

(6) Newport, Northern State Correctional Facility (NSCF) boiler replacement: \$700,000.00

(7) Maintenance, replacement, and renovations at the Chittenden
Regional Correctional Facility or other correctional facilities utilized in
response to overcrowding for the incarcerated women's population:

\$598,850.00

* * *

Appropriation – FY 2026	\$8,225,000.00	<u>\$8,705,000.00</u>
Appropriation – FY 2027	\$4,800,000.00	<u>\$14,345,104.21</u>
Total Appropriation – Section 3	\$13,025,000.00	<u>\$23,050,104.21</u>

Sec. 4. 2025 Acts and Resolves No. 33, Sec. 4 is amended to read:

Sec. 4. COMMERCE AND COMMUNITY DEVELOPMENT

* * *

(b) The following sums are appropriated in FY 2027 to the Agency of
Commerce and Community Development for the following projects:

(1) Major maintenance at statewide historic sites: ~~\$550,000.00~~
\$750,000.00

* * *

(3) Roadside historic site markers: ~~\$25,000.00~~ \$45,000.00

* * *

Appropriation – FY 2027	\$621,000.00	<u>\$841,000.00</u>
Total Appropriation – Section 4	\$1,667,000.00	<u>\$1,887,000.00</u>

Sec. 5. 2025 Acts and Resolves No. 33, Sec. 6 is amended to read:

Sec. 6. VETERANS' HOME

(a) The following sums are appropriated in FY 2026 to the Vermont Veterans' Home for the following projects:

- | | |
|--------------------------------------|--------------|
| (1) Replacement of air handlers: | \$710,000.00 |
| (2) Expansion of laundry facilities: | \$340,000.00 |

(b) The Chief Executive Officer of the Vermont Veterans' Home is authorized to transfer any unexpended project balances between the amounts appropriated in subdivisions (a)(1)–(2) of this section and the amount appropriated in subsection (c) of this section.

(c) The sum of \$1,250,000.00 is appropriated in FY 2027 to the Vermont Veterans' Home for sewage system and elevator upgrades.

Appropriation – FY 2026	\$1,050,000.00
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<u>Appropriation – FY 2027</u>	<u>\$1,250,000.00</u>
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Total Appropriation – Section 6	\$1,050,000.00 <u>\$2,300,000.00</u>
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Sec. 6. 2025 Acts and Resolves No. 33, Sec. 10 is amended to read:

Sec. 10. CLEAN WATER INITIATIVES

* * *

~~(e) The sum of \$10,000,000.00 is appropriated in FY 2027 to the Agency of Natural Resources for the Department of Environmental Conservation for clean water implementation projects. [Repealed.]~~

(f) In FY 2026 and FY 2027, any agency that receives funding from this section shall consult with the State Treasurer to ensure that the projects are capital eligible.

(g) The sum of \$1,500,000.00 is appropriated in FY 2027 to the Agency of Agriculture, Food and Markets for water quality grants and contracts.

(h) The following sums are appropriated in FY 2027 to the Agency of Natural Resources for the Department of Environmental Conservation for the following projects:

(1) Clean Water State Revolving Fund: \$1,577,600.00

(2) Municipal pollution control grants: \$3,922,400.00

(i) The sum of \$200,000.00 is appropriated in FY 2027 to the Agency of Natural Resources for the Department of Forests, Parks and Recreation for water quality improvements to forest access roads.

(j) The following sums are appropriated in FY 2027 to the Vermont Housing and Conservation Board for the following projects:

(1) Agricultural water quality projects: \$800,000.00

(2) Land conservation and water quality projects: \$2,000,000.00

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Sec. 7. 2025 Acts and Resolves No. 33, Sec. 14 is amended to read:

Sec. 14. JUDICIARY

* * *

(c) The sum of \$1,720,818.84 is appropriated in FY 2027 to the Department of Buildings and General Services for the Judiciary for the Newport Courthouse project.

Appropriation – FY 2026 \$5,075,910.00

Appropriation – FY 2027 \$1,720,818.84

Total Appropriation – Section 14 ~~\$5,075,910.00~~ \$6,796,728.84

* * * Reallocations * * *

Sec. 8. 2025 Acts and Resolves No. 33, Sec. 17 is amended to read:

Sec. 17. REALLOCATION AND REVERSION OF FUNDS; TRANSFER
OF FUNDS

(a) The following sums ~~are reallocated~~ appropriated to the Department of Buildings and General Services from prior capital appropriations are reallocated to defray expenditures authorized in Secs. 2–16 of this act:

* * *

(12) of the amount appropriated in 2017 Acts and Resolves No. 84, Sec. 13(b)(2), as added by 2018 Acts and Resolves No. 190, Sec. 10 (CJTC East Cottage): \$43,190.08

(13) of the amounts appropriated in 2019 Acts and Resolves No. 42, Sec. 2(c) (various projects): \$1,624,241.12

(14) of the amounts appropriated in 2021 Acts and Resolves No. 50, Sec. 2(b) (various projects): \$393,854.32

(15) of the amount appropriated in 2021 Acts and Resolves No. 50,

Sec. 3(a)(2) (women's correctional facilities): \$97,890.12

(16) of the amounts appropriated in 2021 Acts and Resolves No. 50,

Sec. 2(c) (various projects): \$618,000.00

(17) of the amounts appropriated in 2023 Acts and Resolves No. 69,

Sec. 2(b) (various projects): \$350,420.67

(18) of the amounts appropriated in 2023 Acts and Resolves No. 69,

Sec. 2(c) (various projects): \$150,000.00

(19) of the amounts appropriated in 2021 Acts and Resolves No. 50,

Sec. 3(b)(1) (women's correctional facilities, replacement): \$868,850.00

(b) The following sums appropriated to the Agency of Commerce and Community Development from prior capital appropriations are reallocated to defray expenditures authorized in Secs. 2–16 of this act:

* * *

(3) of the amount appropriated in 2021 Acts and Resolves No. 50, Sec.

4(a)(4) (Unmarked Burial Fund): \$31,320.70

* * *

(h) Of the amount appropriated from the Capital Infrastructure subaccount of the Cash Fund for Capital and Essential Investments to the Vermont Veterans' Home in 2024 Acts and Resolves No. 113, Sec. B.1103(a)(7) and authorized in 2023 Acts and Resolves No. 69, Sec. 18(d)(7) (design for the renovation of the Brandon and Cardinal units), \$1,500,000.00

is ~~reallocated~~ reverted to defray expenditures authorized in Sec. 19 of this act.

(i) Of the amount appropriated from the Capital Infrastructure subaccount of the Cash Fund for Capital and Essential Investments to the Department of Buildings and General Services in 2024 Acts and Resolves No. 113, Sec. B.1103(a)(9) and authorized in 2023 Acts and Resolves No. 69, Sec. 18(d)(10) (111 State Street; renovation of the stack area), \$200,000.00 is ~~reallocated~~ reverted to defray expenditures authorized in Sec. 19 of this act.

* * *

(n) Of the amount appropriated to the Vermont Veterans' Home in 2023 Acts and Resolves No. 69, Sec. 15(b)(2) (elevator upgrade), \$500,000.00 is reallocated to defray expenditures authorized in Sec. 6 of this act.

(o) Of the amount appropriated to the Enhanced 911 Board in 2017 Acts and Resolves No. 84, Sec. 6(b)(9), as added by 2018 Acts and Resolves No. 190, Sec. 5 (Enhanced 911 Compliance Grants Program), \$63,413.15 is reallocated to defray expenditures authorized in Secs. 2–16 of this act.

(p) Of the amount appropriated to the Agency of Natural Resources for the Department of Forests, Parks and Recreation in 2019 Acts and Resolves No. 42, Sec. 11(j), as added by 2020 Acts and Resolves No. 139, Sec. 7 (State-owned forest and recreational access points), \$0.03 is reallocated to defray expenditures authorized in Secs. 2–16 of this act.

(q) The following sums appropriated from the Capital Infrastructure subaccount of the Cash Fund for Capital and Essential Investments to the Department of Buildings and General Services in 2023 Acts and Resolves No. 78, Sec. B.1105(a) are reverted to defray expenditures authorized in Sec. 19 of this act:

(1) of the amount authorized in 2023 Acts and Resolves No. 69, Sec. 18(c)(1) (planning, reuse, and contingency): \$119,114.60

(2) of the amount authorized in 2023 Acts and Resolves No. 69, Sec. 18(c)(6) (120 State Street renovation): \$1,000,000.00

(3) of the amount authorized in 2023 Acts and Resolves No. 69, Sec. 18(c)(8) (CJTC administration building and West Cottage): \$450,000.00

(4) of the amount authorized in 2023 Acts and Resolves No. 69, Sec. 18(c)(10) (DCF short-term stabilization facility): \$372,557.10

(5) of the amount authorized in 2023 Acts and Resolves No. 69, Sec. 18(c)(11) (Washington County Superior Courthouse in Barre): \$750,000.00

(6) of the amount authorized in 2023 Acts and Resolves No. 69, Sec. 18(c)(13) (planning and design of the Rutland Field Station): \$250,000.00

(7) of the amount authorized in 2023 Acts and Resolves No. 69, Sec. 18(c)(15) (EV charging stations): \$995,040.00

(r) Of the amount appropriated from the Capital Infrastructure subaccount of the Cash Fund for Capital and Essential Investments to the Department of Buildings and General Services in 2024 Acts and Resolves No. 113, Sec.

B.1103(a)(3) and authorized in 2023 Acts and Resolves No. 69, Sec.

18(d)(3), as amended by 2024 Acts and Resolves No. 162, Sec. 11 (120 State
Street renovation), \$1,500,000.00 is reverted to defray expenditures
authorized in Sec. 19 of this act.

Bonded Dollars	\$5,074,938.48	<u>\$9,816,118.67</u>
Cash	\$1,700,000.00	<u>\$7,136,711.70</u>
Total Reallocations, <u>Reversions</u> , and Transfers – Section 17	\$6,774,938.48	<u>\$16,952,830.37</u>

* * * Cash-Funded Project Authorizations * * *

Sec. 9. 2025 Acts and Resolves No. 33, Sec. 19 is amended to read:

Sec. 19. FY 2026 AND 2027; CAPITAL PROJECTS; FY 2026 AND FY
2027 APPROPRIATIONS ACT ACTS; INTENT;
AUTHORIZATIONS

* * *

(b) Intent. It is the intent of the General Assembly to authorize certain capital projects eligible for funding by 32 V.S.A. § 1001b in this act but appropriate the funds for these projects in the FY 2026 and FY 2027 Appropriations Act Acts. It is also the intent of the General Assembly that the FY 2026 and FY 2027 Appropriations Act appropriate Acts transfer funds to the Fund established in 32 V.S.A. § 1001b for projects in FY 2026 and FY 2027.

(c) Authorizations; Capital Infrastructure subaccount. In FY 2026,
spending authority for the following capital projects from the Capital
Infrastructure subaccount of the Cash Fund for Capital and Essential
Investments are authorized as follows:

* * *

(7) to the Vermont Veterans' Home for the design and construction of
the American unit and sprinkler system installation: \$1,500,000.00

* * *

(f) Authorizations; Capital Infrastructure subaccount. In FY 2027,
spending authority for the following capital projects from the Capital
Infrastructure subaccount of the Cash Fund for Capital and Essential
Investments are authorized as follows:

(1) to the Department of Buildings and General Services for statewide
major maintenance: \$1,781,173.60

(2) to the Department of Buildings and General Services for statewide
physical security enhancements: \$225,000.00

(3) to the Department of Buildings and General Services for Asa
Bloomer roof replacement: \$3,600,000.00

(4) to the Department of Buildings and General Services for Rutland
multimodal garage renovation: \$900,000.00

(5) to the Department of Buildings and General Services for Burlington,
32 Cherry St. parking garage repairs: \$3,000,000.00

(6) to the Department of Buildings and General Services for the Agency of Human Services for HVAC upgrades at correctional facilities:

\$1,050,000.00

(7) to the Department of Buildings and General Services for the Agency of Human Services for statewide correctional facilities security upgrades:

\$225,000.00

(8) to the Department of Buildings and General Services for the Agency of Human Services for St. Johnsbury, Northeast Correctional Complex

(NECC) door control system replacements:

\$2,700,000.00

(9) to the Department of Buildings and General Services for the Agency of Human Services for the Northern State Correctional Facility boiler

replacement:

\$1,000,000.00

(10) to the Department of Buildings and General Services for the Agency of Human Services for Newport, Northern State Correctional Facility sprinkler system upgrades:

\$500,000.00

(11) to the Department of Buildings and General Services for the Agency of Human Services for maintenance, replacement, and renovations at the Chittenden Regional Correctional Facility or other correctional facilities utilized in response to overcrowding for the incarcerated women's population:

\$500,000.00

(12) to the Department of Buildings and General Services for the
Agency of Human Services for the Department for Children and Families'
youth short-term stabilization facility: \$772,557.10

(13) to the Department of Environmental Conservation for the State
match for federal Drinking Water State Revolving Fund: \$2,498,000.00

(14) to the Department of Environmental Conservation for Waterbury
Dam Penstock project cost overruns: \$150,000.00

(15) to the Department of Forests, Parks and Recreation for park
infrastructure and rehabilitation, improvement, and three-acre rule compliance:
\$400,000.00

(16) to the Department of Fish and Wildlife for dam maintenance and
safety planning: \$200,000.00

(17) to the Department of Buildings and General Services for the
Department of Public Safety for an Urban Search and Rescue (USAR) facility:
\$500,000.00

(18) to the Judiciary for the Essex County Courthouse connector project:
\$500,000.00

(19) to the Department of Buildings and General Services for the
Judiciary for renovations at the White River Junction courthouse:
\$1,600,000.00

(20) to the Vermont Historical Society for the replacement of a climate
control unit: \$566,724.00

(21) to the Department of Corrections to work with the Agency of Digital Services to develop a plan for providing network connectivity in State correctional facilities that modernizes processes and reduces reliance on paper; improves staff efficiency and addresses workforce challenges, such as staff retention; supports real-time data-driven operations; lays the foundation for future capabilities, such as wearable technology and mobile device-supported operations; and ensures secure, compliance connectivity in key facilities, each as outlined in the Business Transformation Project Recommendations Report issued by the Agency:

\$750,000.00

* * * Policy * * *

* * * Department of Environmental Conservation * * *

Sec. 10. 24 V.S.A. § 4752 is amended to read:

§ 4752. DEFINITIONS

As used in this chapter:

* * *

(21) “Eligible mobile home park water system” means a privately owned nonprofit community type system that serves a majority of the users who reside in a nonprofit- or resident-owned mobile home park registered with the Department of Housing and Community Development pursuant to 10 V.S.A. § 6254.

Sec. 11. 24 V.S.A. § 4771 is amended to read:

§ 4771. CONDITIONS OF LOAN AGREEMENT

(a) VEDA may make loans to applicants on behalf of the State for one or more of the purposes set forth in subsection 4770(b) of this title. Each such loan shall be made subject to the following conditions:

(1) The loan shall be evidenced by a note payable over a term not to exceed 30 years. Repayment shall commence not later than one year after completion of the project for which loan funds have been applied.

(2) The loan shall be secured with assets as determined by VEDA. VEDA may also require that the applicant assign all or a portion of the water system revenues as security for the loan, or may require the establishment of a reserve fund.

(3) The loan recipient shall establish a dedicated source of revenue for repayment of the loan which may include a pledge of revenue from user charges, tap fees, development charges, and pledges of accounts receivable and the proceeds therefrom.

(4) The rate of interest charged for loans shall be set by the State Treasurer, taking into consideration prevailing borrowing rates available to similarly situated applicants from private lenders and administrative fees to be charged to applicants. VEDA, in cooperation with the Secretary, shall periodically recommend interest rates to be set by the State Treasurer ~~which~~ that are the lowest practicable rates consistent with maintaining the long-term integrity of the Fund. The interest rate set by the State Treasurer may be less

than the prevailing borrowing rates available to similarly situated applicants from private lenders, but not less than zero percent.

(5)(A) Notwithstanding ~~subdivision~~ subdivisions (1) and (4) of this subsection (a), a privately owned nonprofit community type system may qualify for a 40-year loan term at an interest rate, plus administrative fee, to be established by the Secretary of Natural Resources that shall be not more than three percent or less than minus three percent, provided that the applicant system meets the income level and annual household user cost requirements of a disadvantaged municipality as defined in subdivision 4752(12)(A) of this title or is an eligible mobile home park water system, and at least 80 percent of the residential units served by the water system is continuously occupied by local residents and at least 80 percent of the water produced is for residential use.

(B) [Repealed.]

(C) If the Secretary determines that a privately owned nonprofit community type system qualifies for a loan under this subdivision (5), the Secretary shall certify the loan term and interest rate to VEDA. ~~In no instance shall the~~ Except as applied to an eligible mobile home park water system, the Secretary shall not certify an annual interest rate, plus an administrative fee, ~~be~~ pursuant to this subdivision (C) that is less than is necessary to achieve an annual household user cost equal to one percent of the median household

income of the applicant water system computed in the same manner as prescribed in subdivision 4763c(b)(2) of this title.

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* * * Division for Historic Preservation * * *

Sec. 12. 22 V.S.A. § 725 is amended to read:

§ 725. ACCEPTANCE AND SOLICITATION OF FUNDS OR GIFTS FOR
HISTORIC SITES AND VERMONT ARCHAEOLOGY HERITAGE
CENTER

(a) With Notwithstanding 3 V.S.A. § 1203g and with the approval of the Secretary of Administration, the State Historic Preservation Officer may accept and solicit grants, gifts, donations, loans, or other things of value on behalf of the Division for Historic Preservation for use by the Division for Historic Preservation in establishing and maintaining displays and exhibits at any historic site and at the Vermont Archaeology Heritage Center, or restoring any historic site maintained and developed under section 723 of this chapter.

(b) In any request for approval of solicitation under this section, the State Historic Preservation Officer shall specify the project and fundraising goal for which the Officer is undertaking fundraising.

* * * Department of Forests, Parks and Recreation * * *

Sec. 13. DEPARTMENT OF FORESTS, PARKS AND RECREATION;
LITTLE RIVER STATE PARK LEASE

(a) Notwithstanding 29 V.S.A. § 166, in fiscal year 2027, the Commissioner of Forests, Parks and Recreation is authorized to enter into a long-term lease with Vermont Huts Association Ltd. for the use of a structure at Little River State Park and the land on which the structure is located, provided that the lease specifies:

(1) the term of 20 years with an option to renew for an additional two 10-year terms at the Commissioner's discretion;

(2) the fee or fee formula to be used to compensate the State;

(3) conditions on the use of the structure, including the boundaries of the land and structure to be leased;

(4) that Vermont Huts Association Ltd. shall secure insurance and be subject to an indemnification clause consistent with Attachment C, Standard State Provisions for Contracts and Grants, approved by the Agency of Administration in Administrative Bulletin 3.5;

(5) provisions for the termination of the lease;

(6) requirements for the operation and maintenance of the leased structure and lands, including responsibility for the costs of maintenance;

(7) how any conflict between the parties shall be resolved; and

(8) that a contract between the Department and Vermont Huts Association Ltd., executed in accordance with the Standard State Provisions for Contracts and Grants set forth in Administrative Bulletin 3.5 of the Agency

of Administration, be required for the relocation and reconstruction of the Goodell House located at Little River State Park.

(b) The Commissioner of Forests, Parks and Recreation shall report to the Chairs of the House Committee on Corrections and Institutions and Senate Committee on Institutions with a report on the status of the lease negotiations under this section on or before August 15, 2026, and immediately prior to execution of any related lease agreement and shall provide to the Chairs the lease agreement promptly following execution.

* * * Department of Buildings and General Services * * *

Sec. 14. SOUTHERN STATE CORRECTIONAL FACILITY; PROPERTY
TRANSFER

(a) Notwithstanding 29 V.S.A. § 166, the Commissioner of Buildings and General Services is authorized to transfer to the Town of Springfield a portion of the Southern State Correctional Facility property consisting of approximately 22.93 acres to be used for municipal purposes, including economic development as an industrial parcel, provided that the Commissioner may transfer the property only if:

(1) the State obtains any State or local zoning or subdivision approvals required for transfer;

(2) the State and the Town negotiate updates to the 1999 Agreement to:

(A) establish responsibility for the maintenance and upkeep of the access road and the water and sewer service lines for the Facility and the transferred property; and

(B) mitigate impacts to the Springfield community; and

(3) the transferred property does not include any brownfields.

(b) If the Town has not begun developing the transferred property for purposes of economic development by the end of March 2030, the Town shall consult with the Commissioner of Buildings and General Services to examine alternative uses for the property.

Sec. 15. REPEALS

(a) 2024 Acts and Resolves No. 162, Sec. 23 (Southern State Correctional Facility; transfer of parcel) is repealed.

(b) Sec. 14 of this act (Southern State Correctional Facility; property transfer) is repealed on July 1, 2030.

Sec. 16. 2023 Acts and Resolves No. 69, Sec. 22(a) is amended to read:

(a)(1) 110 State Street. ~~Notwithstanding 29 V.S.A. § 166(b), the~~ The Commissioner of Buildings and General Services is authorized to sell the property located at 110 State Street in the City of Montpelier, provided that the Commissioner includes in any contract for sale appropriate interior and exterior protective covenants developed in consultation with the Division for Historic Preservation and the Vermont Advisory Council on Historic

Preservation pursuant to 22 V.S.A. § 743. ~~The Commissioner shall first offer in writing to the City the right to purchase the property.~~

~~(1) The City's preferential right to purchase the property authorized in this subsection shall terminate unless the City submits a written notification to the Commissioner of its intent to purchase the property on or before October 15, 2023.~~

~~(2) If the City submits a notification of its intent to purchase the property pursuant to subdivision (1) of this subsection, the City shall submit a written offer to the Commissioner not later than June 1, 2024. In the event the City fails to submit a written offer by June 1, 2024, then the City's preferential right to purchase the property shall terminate and the Commissioner is authorized to sell the property to another party~~ The Commissioner of Buildings and General Services shall provide to the Chairs of the House Committee on Corrections and Institutions and the Senate Committee on Institutions copies of any related request for proposal and any executed contract for sale of 110 State Street in the City of Montpelier promptly after each becomes available.

(3) It is the intent of the General Assembly to ensure that 110 State Street in the City of Montpelier is sold at fair market value; that historic attributes of the property are protected for future generations; that the Chairs of the House Committee on Corrections and Institutions and the Senate Committee on Institutions receive timely notice of status updates on the disposition of the property; and that the initial purchaser of the property

provides notification of any intent to sell to the Secretary of Administration and the Commissioner of Buildings and General Services, who shall then promptly notify the Chairs of the House Committee on Corrections and Institutions and the Senate Committee on Institutions of the potential sale.

Sec. 17. CHITTENDEN REGIONAL CORRECTIONAL FACILITY

Among the uses of the funds appropriated in 2025 Acts and Resolves No. 33, Secs. 3(b)(7) and 19(f)(11), as amended by this act, the Department of Buildings and General Services shall prioritize repairs of bathrooms, showers, and flooring at the Chittenden Regional Correctional Facility. If the Department of Buildings and General Services applies funds to other correctional facilities to respond to overcrowding at the Chittenden Regional Correctional Facility, the Commissioner of Buildings and General Services and the Commissioner of Corrections shall provide an overview of the use of funds to the Joint Legislative Justice Oversight Committee at the Committee's regularly scheduled meetings in calendar year 2026.

* * * Agency of Human Services * * *

Sec. 18. HIGH-END SYSTEM FACILITIES FOR YOUTH

(a) At the August, October, and December 2026 meetings of the Joint Legislative Justice Oversight Committee, the Departments for Children and Families and of Buildings and General Services shall report on their plan to develop the Green Mountain Youth Facility.

(b) Notwithstanding any other provision of law to the contrary, before the Departments for Children and Families and of Buildings and General Services approve design documents for construction and prior to approval of the lease for the facility, the Department of Buildings and General Services shall submit their approved design to the House Committees on Corrections and Institutions and on Human Services and the Senate Committees on Institutions and on Health and Welfare. At the same time, the Department for Children and Families shall submit a draft operating budget.

* * * Department of Corrections and Agency of Digital Services * * *

Sec. 19. REPORT; NETWORK CONNECTIVITY IN STATE

CORRECTIONAL FACILITIES

The Commissioner of Corrections and the State Chief Information Officer of Digital Services, in consultation with the Commissioner of Buildings and General Services, shall report to the Joint Legislative Justice Oversight Committee at each scheduled meeting of the Committee in calendar year 2026 on the plan for providing network connectivity in State correctional facilities authorized pursuant to 2025 Acts and Resolves No. 33, Sec. 19(f)(21), including any prioritization and schedule.

* * * Stormwater Utilities * * *

Sec. 20. 24 V.S.A. § 4414(9) is amended to read:

(9) Stormwater management and control. Any municipality may adopt bylaws to implement stormwater management and control consistent with the

program developed by the Secretary of Natural Resources pursuant to 10

V.S.A. § 1264. The creation of a regional stormwater utility under statute or rules of the Agency of Natural Resources shall not prevent a municipality from regulating stormwater under this subdivision, including adoption by the municipality of a bylaw establishing a municipal stormwater utility.

Municipalities shall not charge an impervious surface fee or other stormwater fee under this subdivision or under other provisions of this title on property regulated under the Required Agricultural Practices for discharges of agricultural waste or agricultural nonpoint source pollution.

Sec. 21. 24 V.S.A. § 3626 is added to read:

§ 3626. MUNICIPAL AUTHORITY TO AUTHORIZE AND OPERATE
STORMWATER UTILITY

The creation of a regional stormwater utility under statute or rules of the Agency of Natural Resources shall not prevent a municipality from regulating stormwater under this chapter, including adoption by the municipality of a bylaw authorizing the operation of a municipal stormwater utility that establishes an assessment on an equivalent residential unit or impervious surface.

* * * General Assembly * * *

Sec. 22. STATE HOUSE; ENTRYWAY DESIGN; SPECIAL COMMITTEE

(a) A special committee consisting of the Joint Legislative Management Committee and the Chairs of the House Committee on Corrections and

Institutions and the Senate Committee on Institutions (special committee) is hereby established. The special committee is authorized to meet to review, approve, or recommend alterations to the State House entryway design at a regularly scheduled Joint Legislative Management Committee meeting.

(b) The special committee shall be entitled to per diem and expenses as provided in 2 V.S.A. § 23.

* * * Effective Date * * *

Sec. 23. EFFECTIVE DATE

This act shall take effect on passage.

Date Governor signed bill: June 17, 2026